

6 June 2023
Housekeeping

Tuesday, 6 June 2023
(2.15 pm)

(In the absence of the jury)

Housekeeping

MR JUSTICE GOSS: Mr Johnson, Mr Myers, I hope the news has filtered through to you that the court will be able to continue to hear the trial tomorrow and all the jurors will be here.

Tomorrow, of course, is a 3 o'clock finish, I remind everyone, but otherwise we have tomorrow, Thursday and Friday, barring something else occurring.

MR JOHNSON: Good.

MR MYERS: We're grateful. We have nothing to add at this point, my Lord.

MR JUSTICE GOSS: Thank you. It's good news, essentially.

MR MYERS: Yes. There's nothing to raise, but it was necessary to have the hearing because we weren't to know in advance quite what the position would be so we're grateful for the opportunity to have this confirmed.

MR JUSTICE GOSS: No one knew until this morning.

Is there anything that we can do that doesn't concern the jury at this stage, Mr Myers, or not? I'm not suggesting there is necessarily, I was just checking.

MR MYERS: No, there isn't. There's one issue with regard to potential defence witnesses we are dealing with at the moment, but that isn't something that we can deal with immediately.

MR JUSTICE GOSS: Right.

MR MYERS: May I say it this way: it may be that if there are matters to be dealt with, and we're making sure those who need to be aware of this are informed, if there are matters to be pursued, it may be that we provide the necessary material, certainly to your Lordship and the prosecution, and we're considering who else would require it, in advance of being able to confirm the position with the defendant. It may be that we do not go on to make any application to call any other witness, but at the same time we need to be prepared so that, if we do, your

Lordship and any other person that needs to know has the necessary material to react to it.

MR JUSTICE GOSS: I understand.

MR MYERS: But we won't be in a position to make such an application until we know that those witnesses are to be called pending the outcome of whatever applications are made.

MR JUSTICE GOSS: Yes, I entirely understand. I thought that would probably be the case, but I thought it worthwhile confirming the situation.

MR MYERS: Yes, thank you, my Lord.

MR JUSTICE GOSS: Then looking further into the future, of course next week the court is only sitting with the jury for 2 days, or the jury is only available for 2 days, which is Wednesday and Thursday.

MR MYERS: We don't know for sure, of course, how we will go with the evidence, but again to assist the court with the likely course of this, if Ms Letby's evidence has concluded this week, which it may have done, one hopes it will have done, if it has, then we would be able to make use of Friday or such time on Friday as we have with Ms Letby and possibly Monday and/or Tuesday of the week following if she's produced at court. Therefore we can use the time before we come to next Wednesday and Thursday to confirm the position with what would follow next and we can keep the court informed.

MR JUSTICE GOSS: That's what I had in mind, that if we reach a stage when you can use a non-sitting day to do things then I will facilitate that.

MR MYERS: We're grateful. Thank you, my Lord.

MR JUSTICE GOSS: Good.

(Pause)

On 13 June, that's Tuesday of next week...

MR MYERS: We can make provision to meet with Ms Letby on the Monday and hope we can deal with whatever needs to be dealt with then. It's difficult to say for sure, but we would hope that the Monday would give us the time we require. We can't say for sure we would need her to be brought on the Tuesday, so if the van is required -- if there is just one van and it's required elsewhere on the Tuesday, it's difficult for us to say that we would have to use it, we may not need it.

MR JUSTICE GOSS: The answer is -- well, possibly.

Unlikely, but possible, I think is probably...

MR JOHNSON: I would encourage your Lordship not to release the van, so to speak, because one can just foresee a situation where Ms Letby will be required to be here just because if we lose another day along the way, then we may end up in that position.

MR JUSTICE GOSS: Exactly. One doesn't know -- if simply one van can only transport one prisoner on that day then they'll have to find another van.

MR MYERS: Yes, we agree, in fact, on reflection. We can't forego the opportunity for her to be present on the Tuesday given that she may be required on the Tuesday.

MR JUSTICE GOSS: Exactly, we don't know.

MR MYERS: No, we don't. We agree with that, my Lord.

MR JUSTICE GOSS: Just say we can't say she'll not be required, therefore a van will be available if required.

Right. Thank you. I don't know whether there's anything you want to say in relation to that.

DOCK OFFICER: (Inaudible: no microphone).

MR JUSTICE GOSS: We could probably, on Monday, say definitively one way or the other as to whether it'll be required on the Tuesday, but here today, this Tuesday, we can't say, well, we can say for sure next Tuesday we will or will not need the van. I'm sorry about that.

DOCK OFFICER: (Inaudible: no microphone).

MR JUSTICE GOSS: That's very helpful, thank you. That reassures me. But if you want to pass on the information, if there has to be rescheduling of the requirement by the other person then you can say for sure that a week on Friday, which is 16 June, this court will not be sitting and the defendant will not be required here at all on that day. So that is a definite day.

MR MYERS: Thank you, my Lord.

MR JUSTICE GOSS: All right. I hope that may be of some help. Thank you very much.

(2.21 pm)

(The court adjourned until 10.30 am on Wednesday, 7 June 2023)